

Court No. - 35

Case :- WRIT - C No. - 34559 of 2012

Petitioner :- M/S Shree Nath Duplex Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra,A.N.Singh

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Shri Mayank Agrawal, learned counsel for the petitioner, the case is directed to be put up as fresh before the appropriate Bench on 1.8.2012.

Order Date :- 19.7.2012

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Court No. - 35

Case :- WRIT - C No. - 34559 of 2012

Petitioner :- M/S Shree Nath Duplex Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra,A.N.Singh

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

It is submitted by Shri Mayank Agrawal, learned counsel for the petitioner that the petitioner opted for pre-payment meter, and therefore, the demand of Additional Security from the petitioner under the provisions of sub-section (2) of Section 47 of the Electricity Act, 2003, is illegal in view of the provisions contained in sub-section (5) of Section 47 of the said Act.

It is further submitted that the provisions contained in sub-clause (1) of Clause 4.20 of the Electricity Supply Code, 2005 is ultra-vires sub-section (5) of Section 47 of the Electricity Act, 2003.

It is further submitted that the Regulations in regard to the Security as contemplated in clause (v) of sub-section (2) of Section 181 of the Electricity Act, 2003 have not so far been framed.

Shri Mayank Agrawal, learned counsel for the petitioner further refers to the provisions contained in Section 174 of the aforesaid Act, which gives overriding effect to the provisions of the said Act.

It is also submitted that the controversy involved in the present Writ Petition is also the subject-matter of Civil Misc. Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others) and other connected Writ Petitions wherein Interim Orders have been passed.

Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2 does not dispute that the controversy involved in the present Writ Petition is also the subject-matter of the aforesaid Civil Misc. Writ Petition No. 51844 of 2009 and other connected Writ Petitions wherein Interim Orders have been passed.

In view of the above, we proceed to pass similar order in the present Writ Petition.

Connect and list with Civil Misc. Writ Petition No. 51844 of 2009.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 2 has been accepted by Shri Nripendra Mishra.

Notice on behalf of the respondent no. 3 has been accepted by Shri A.N.

Singh, learned counsel for the said respondent.

Therefore, no notice need be sent to the respondents.

Learned counsel for the respondents may file their Counter Affidavits within three weeks.

Rejoinder Affidavit may be filed within two weeks thereafter.

List alongwith connected Civil Misc. Writ Petition No. 51844 of 2009 after the expiry of the aforesaid period.

In view of the Interim Order, granted in the aforesaid Civil Misc. Writ Petition No. 51844 of 2009 and other connected Writ Petitions, it is provided that until further orders of this Court, the respondents will not demand the Additional Security, as mentioned in the Communication dated 30th May, 2012 (Annexure 3 to the Writ Petition), provided the petitioner gives an undertaking on Affidavit before the Respondent No.2 within six weeks from today that in case of failure of the Writ Petition, the Additional Security as demanded would be furnished by the petitioner.

It is made clear that this Order is being passed without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

The case is released from Assignment/Nomination.

Let it be listed before the appropriate Bench.

Order Date :- 23.8.2012

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Court No. - 32

Case :- WRIT - C No. - 34559 of 2012

Petitioner :- M/S Shree Nath Duplex Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Nripendra Mishra,A.N.Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Called in revise. None appeared to press the writ petition. In the circumstances, we ourselves have perused the record.

By means of the present writ petition, petitioner has sought following relief:

"(i) to issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 30.05.2012, demanding additional security (filed as Annexure Nos. 3 to this writ petition);

(ii) to issue a writ, order or direction in the nature of mandamus directing the respondents to pay interest at Bank rate since the inception of the petitioner's unit on the security amount already deposited by the petitioner;

(iii) to issue a writ, order or direction in the nature of mandamus directing the respondents to refund the security amount already deposited by the petitioner amounting to Rs. 12,00,000/-;

(iv) to issue a writ, order or direction in the nature of mandamus declaring Clause 4.20(i)(1) of the amended Code (amended w.e.f. 14th September, 2006) as illegal and ultravires Section 47(5) & 47(4) of the Electricity Act, 2003;

(v) to issue a writ, order or direction in the nature of mandamus declaring Clause 4.20(i) of the amended Code (amended with effect from 14th September 2006) as retrospective in application/ operation with effect from 10th June, 2003 (i.e. promulgation of the Electricity Act, 2003)."

Having gone through the entire writ petition, we do not find any ground entitling the petitioner for grant of any of above reliefs. No interference, therefore, is called for.

Dismissed. Interim order, if any, stands vacated.

Order Date :- 3.8.2018

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